

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Ariel Courage	Team: Squad #06	CCRB Case #: 201502240	☒ Force ☐ Discourt. ☐ U.S. ☒ Abuse ☐ O.L. ☒ Injury
Incident Date(s) Thursday, 07/10/2014 7:30 PM	Location of Incident: Rockaway Parkway between Glenwood Road and Smiths Lane	18 Mo. SOL 1/10/2016	Precinct: 69
Date/Time CV Reported Mon, 03/23/2015 1:35 PM	CV Reported At: CCRB	How CV Reported: Mail	Date/Time Received at CCRB Mon, 03/23/2015 1:35 PM

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM James Hasper	23680	923935	BARRIER
2. POM Frank Dantuono	25587	936426	F.T.S.
3. DT3 Jason Filoramo	3881	943237	GANG BS
4. DT3 Michael Espinosa	5454	934794	GANG BS
5. An officer			
6. Officers			

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM David Ramos	12596	949527	069 PCT
2. POM John Gergis	04088	950487	069 PCT
3. SGT Michael Lindsley	03934	904372	069 PCT
4. POF Deena Dolan	15299	922269	MAN CT

Officer(s)	Allegation	Investigator Recommendation
A . DT3 Michael Espinosa	Abuse: Det. Michael Espinosa damaged § 87(2)(b) s property.	A . Exonerated
B . POM Frank Dantuono	Force: PO Frank Dantuono pointed his gun at § 87(2)(b)	B . Exonerated
C . POM James Hasper	Force: PO James Hasper fired his gun at § 87(2)(b)	C . Substantiated
D . An officer	Force: An officer struck § 87(2)(b) with a blunt instrument.	D . Officer(s) Unidentified
E . DT3 Jason Filoramo	Force: Det. Jason Filoramo used physical force against § 87(2)(b)	E . Exonerated
F . Officers	Force: Officers used physical force against § 87(2)(b)	F . Unfounded

Case Summary

On March 23, 2015, § 87(2)(b) filed this complaint with the CCRB via mail (BR 01).

§ 87(2)(g)

§ 87(2)(g)

On July 10, 2014, at approximately 7:30 p.m., Det. Michael Espinosa and Det. Jason Filoramo, both of Gang Brooklyn South, were stopped in their unmarked RMP at a traffic light on Rockaway Parkway at its intersection with Flatlands Avenue when they observed § 87(2)(b) drive his SUV into a lane of oncoming traffic and run a steady red light at a high rate of speed. Det. Espinosa and Det. Filoramo activated their lights and sirens to stop § 87(2)(b) § 87(2)(b) did not pull over because he had an open parole warrant and wanted to evade arrest, leading Det. Espinosa and Det. Filoramo on a protracted and circuitous vehicle pursuit, during which § 87(2)(b) § 87(2)(b) drove on the sidewalk and struck multiple other vehicles, including the RMP of Det. Filoramo and Det. Espinosa.

§ 87(2)(b) eventually became stuck in traffic on Rockaway Parkway between Glenwood Road and Smith's Lane. § 87(2)(b) repeatedly reversed and moved forwards, ignoring officer's repeated verbal instructions to stop, and striking both a marked RMP behind him and a civilian vehicle in front of him. Numerous police officers converged upon § 87(2)(b)'s vehicle, including Det. Espinosa, Det. Filoramo, and others from the 69th Precinct. As Det. Espinosa approached § 87(2)(b)'s vehicle, he struck one of its windows with his asp (**Allegation A**).

During this time, an off-duty police officer, PO James Hasper, was on his way to work at the 69th Precinct with a fellow off-duty police officer, PO Frank Dantuono, when he observed officers surrounding § 87(2)(b)'s vehicle. PO Dantuono pointed his gun at § 87(2)(b) (**Allegation B**), as did PO Hasper (**subsumed under Allegation C**). PO Hasper approached § 87(2)(b)'s vehicle on the passenger side and discharged his firearm at § 87(2)(b) once, striking § 87(2)(b) in his torso underneath his right armpit (**Allegation C**).

§ 87(2)(b) alleged that as he was removed from his SUV, an unidentified officer struck him atop his head with a blunt instrument (**Allegation D**). Det. Filoramo removed § 87(2)(b) from the vehicle by pulling on his left arm (**Allegation E**). § 87(2)(b) alleged that once he was removed from the vehicle officers beat him (**Allegation F**).

The sole video file obtained by the investigation was recorded by a bystander, § 87(2)(b) after § 87(2)(b) was removed from his vehicle. The video depicts two uniformed officers, PO Patrick Gourlay of the 69th Precinct and a second, unidentified officer, holding § 87(2)(b) while they wait for an ambulance to arrive. § 87(2)(g) (BR 03 and 04; see below capture).



2015-10-29_8-59-48.mp4

EMS responded and removed § 87(2)(b) to § 87(2)(b) (BR 05). § 87(2)(b) was arrested and charged with § 87(2)(b)

(BR 06).

Mediation, Civil and Criminal Histories

- This case was not eligible for mediation due to § 87(2)(b)'s arrest.
- On § 87(2)(b) § 87(2)(b) filed a Notice of Claim claiming denial of civil rights, battery, negligence, as well as severe and permanent damage to his right lung, liver, small intestine, and other internal organs, and seeking \$20,000,000 as recompense (BR 07). No 50-h Hearing has yet been held (BR 08).

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Civilian and Officer CCRB Histories

- This is the first CCRB complaint filed by § 87(2)(b) (BR 10).
- PO James Hasper has been a member of the service for 16 years. There are six prior allegations against him across three cases which occurred between 2001 and 2004 and none of which were substantiated. § 87(2)(g)
[REDACTED]
- PO Frank Dantuono has been a member of the service for 10 years. There are six prior allegations against him from one case which occurred in 2007, none of which was substantiated. § 87(2)(g)
[REDACTED]
- Det. Michael Espinosa has been a member of the service for 11 years. There are six prior allegations against him across three cases that occurred between 2006 and 2010, none of which was substantiated. § 87(2)(g)
[REDACTED]
- Det. Jason Filoramo has been a member of the service for 8 years. This is the first CCRB allegation against him.

Potential Issues

- The DD5s prepared by the 69th Precinct Detective Squad for this incident listed several witnesses (BR 11): § 87(2)(b) a bystander who recorded the video footage; § 87(2)(b) and § 87(2)(b) the driver and passenger of a vehicle § 87(2)(b) struck; § 87(2)(b) a bystander; § 87(2)(b) another motorist; § 87(2)(b) the § 87(2)(b); § 87(2)(b) the driver of the sedan that § 87(2)(b) rear-ended; and an unidentified individual who called 911 about this incident.

Between May 8, 2015, and May 19, 2015, five calls were placed and two letters mailed to § 87(2)(b). Each time his number was found not to be in service. The investigation was therefore unable to establish contact with § 87(2)(b). On November 23, 2015, further contact attempts were made to § 87(2)(b) and contact

was established with § 87(2)(b)'s wife, who indicated that § 87(2)(b) was out of the country indefinitely.

Between May 8, 2015, and May 19, 2015, five calls were placed and two letters mailed to § 87(2)(b) and § 87(2)(b). Each time, the undersigned left voice messages requesting a call back. To date, neither § 87(2)(b) nor § 87(2)(b) has contacted the CCRB.

On May 15, 2015, investigation established contact with § 87(2)(b) (BR 12), who said he was driving with his coworker, § 87(2)(b) near the intersection of Rockaway Avenue and Conklin Avenue, when § 87(2)(b) sideswiped them. Either § 87(2)(b) or unidentified bystanders called 911 on § 87(2)(b)'s behalf and eventually an ambulance responded and transported § 87(2)(b) and § 87(2)(b) to the hospital. § 87(2)(b) did not witness any part of § 87(2)(b)'s apprehension, though later at the hospital an officer told § 87(2)(b) that § 87(2)(b) had been shot. § 87(2)(g)

On May 8, 2015, the investigation established contact with § 87(2)(b) who denied witnessing § 87(2)(b)'s apprehension. Therefore no in-person statement was obtained from him.

On May 19, 2015, the undersigned contacted the unidentified individual who reported this incident to 911. The individual claimed to have no knowledge of this incident and attempts to refresh his recollection were unsuccessful.

On May 8, 2015, the investigation established contact with § 87(2)(b) (BR 13), who provided a telephone statement and was scheduled to be interviewed on May 22, 2015. § 87(2)(b) missed her scheduled appointment. On May 27, 2015, the undersigned again contacted § 87(2)(b) who rescheduled to appear at the CCRB on May 29, 2015. § 87(2)(b) missed this second scheduled appointment without providing cancellation notice. Therefore no in-person statement was obtained from her.

Findings and Recommendations

Explanation of Subject Officer Identification

- § 87(2)(b) (BR 14) alleged that an officer who he did not see and therefore could not describe struck him with a blunt instrument as he was removed from the vehicle. § 87(2)(g)
- § 87(2)(b) (BR 14) alleged that after he was removed from the vehicle and lost consciousness, officers beat him. § 87(2)(b) did not see the officers who allegedly beat him, and could not estimate their number, and could not describe how he was beaten. § 87(2)(g)

Allegations not pleaded

- § 87(2)(g) [REDACTED]
[REDACTED]
- **Vehicle search:** Video footage (BR 03 and 04; see below) depicts three unidentified plainclothes officers searching both the front driver and passenger side of § 87(2)(b)'s vehicle after he has been removed from it. § 87(2)(b) did not himself allege this. § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].



2015-10-29_8-55-06.mp4



2015-10-29_8-54-16.mp4

Allegation A – Abuse of Authority: Det. Michael Espinosa damaged § 87(2)(b)'s property.

Allegation B – Force: PO Frank Dantuono pointed his gun at § 87(2)(b)

Allegation C - Force: PO James Hasper fired his gun at § 87(2)(b)

It is undisputed that § 87(2)(b) led officers in a vehicle pursuit. A detailed description of the route § 87(2)(b) took in evading officers can be found in the UF-49 (BR). It is undisputed that § 87(2)(b) at least once rear-ended the vehicle in front of him, which belonged to § 87(2)(b). It is undisputed that § 87(2)(b) then reversed. A diagram prepared by the Crime Scene Unit (BR 20) depicts the positioning of all vehicles at the scene where § 87(2)(b) was ultimately shot.

§ 87(2)(b) (BR 14) acknowledged that he consumed alcohol and marijuana before driving. This is supported by evidence the Crime Scene Unit recovered from his vehicle, including several liquor bottles (BR 34 to 37) and a paper cup possibly containing liquor found in a holder next to the steering wheel (BR 38 and 39). § 87(2)(b) acknowledged that he committed vehicular infractions in that he drove over the speed limit, ran a red light, and crossed into lanes of oncoming traffic. § 87(2)(b) also acknowledged that he attempted to evade Det. Filoramo and Det. Espinosa's attempt to pull him over because he had an open parole warrant, § 87(2)(g) [REDACTED]

§ 87(2)(b) said he struck a fire hydrant, but denied striking any civilian or police vehicles, and that the pursuit was shorter and less circuitous than that described by the officers, § 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED].

§ 87(2)(b) said that on Rockaway Parkway between Glenwood Road and Smith's Lane, he became stuck behind § 87(2)(b) vehicle and then reversed. § 87(2)(b) explained that he was trying to maneuver his vehicle so that he could pass in between § 87(2)(b) car and a vehicle stopped in the oncoming lane of traffic and continue driving. § 87(2)(b) did not believe he made contact with a police vehicle when he reversed, § 87(2)(g) [REDACTED],

§ 87(2)(g)

After reversing, § 87(2)(b) attempted to put his vehicle back in drive. § 87(2)(b) was able to shift his vehicle back into neutral before he felt a burning sensation in his chest. § 87(2)(b) did not hear a gunshot and did not see the officer who shot him. § 87(2)(b)'s vehicle then rolled forward and again struck the rear of § 87(2)(b) vehicle again, which caused it to stop.

§ 87(2)(b) was transported to § 87(2)(b) (BR 17), § 87(2)(a) PHL § 18(6)

§ 87(2)(g)

§ 87(2)(b) (BR 11) told the 69th Precinct Detective Squad that he was sitting in his truck when he heard a loud pop, which drew his attention to the incident. When § 87(2)(b) looked, he saw officers removing § 87(2)(b) from his vehicle.

§ 87(2)(b) (BR 11) told the 69th Precinct Detective Squad that he was driving southeast on Rockaway Parkway when he saw § 87(2)(b) driving northeast, and that § 87(2)(b) nearly struck him, so that § 87(2)(b) had to swerve out of his way. § 87(2)(b) heard multiple officers yelling at § 87(2)(b) to stop his vehicle, and saw § 87(2)(b) back his SUV into a marked RMP stopped behind him. § 87(2)(b) then heard a gunshot and ducked down while still driving, so that he crashed into an unoccupied vehicle parked at the curb.

§ 87(2)(b) (BR 11) told the 69th Precinct Detective Squad that she was parked on Rockaway Parkway across from a Walgreens pharmacy when she observed officers on foot telling § 87(2)(b) to stop. § 87(2)(b) struck the vehicle in front of him, and then backed up at a high rate of speed, striking a marked RMP. The officers moved away from the vehicle as it reversed. § 87(2)(b) then grew frightened and ran away, and heard but did not see the gunshots.

§ 87(2)(b) (BR 11 and 13) told the 69th Precinct Detective Squad and the CCRB that she was driving on Rockaway Parkway when § 87(2)(b) rear ended her. § 87(2)(b) then backed up into a marked RMP. § 87(2)(b) then heard a shot, but did not see who fired it.

§ 87(2)(b) (BR 12) and § 87(2)(b) (BR 11) had been struck by § 87(2)(b) at an earlier point during the vehicle pursuit and did not see how he was apprehended.

PO Hasper (BR 16) said that he was off-duty at the time of this incident and was on Rockaway Parkway between Glenwood Road and Smith's Lane driving to work with a fellow officer, PO Frank Dantuono, when § 87(2)(b) passed them on the left, crossing into a lane of oncoming traffic to do so, and then rammed the vehicle stopped at the traffic light about a car length ahead of PO Hasper's vehicle. PO Hasper thought that § 87(2)(b) may have been attempting to ram this vehicle so that he could drive onto the sidewalk. Because PO Hasper was off-duty, he had no radio with him, and therefore had no knowledge of § 87(2)(b) or his vehicle before he saw it. PO Hasper noted that this area was crowded with vehicular and pedestrian traffic at the time.

A marked RMP pulled in behind § 87(2)(b)'s vehicle. § 87(2)(b) then reversed into this RMP. PO Hasper did not know where the officers assigned to this RMP, identified by the investigation as PO Gergis and PO Ramos, were at the time § 87(2)(b) reversed.

PO Hasper exited the vehicle with PO Dantuono. PO Hasper drew his gun. PO Hasper positioned himself on the passenger side of § 87(2)(b)'s vehicle close to its front. There were at least three or five officers, some of whom were uniformed and some of whom wore plainclothes, surrounding the vehicle on its sides and rear, though PO Hasper did not see more specifically how

they were positioned, noting that once he reached the front passenger side of § 87(2)(b)'s vehicle he did not want to take his eyes off of § 87(2)(b) in case § 87(2)(b) tried to run him over. PO Hasper noted that § 87(2)(b) could have had a gun, but had no indication that § 87(2)(b) might be armed aside from the manner in which he was driving and ignoring the officer's instructions. PO Hasper explained: "Why act like that...why run...from the police if you're not armed or have drugs, committed a crime?" PO Hasper could see § 87(2)(b) at this time. PO Hasper and the other officers surrounding § 87(2)(b)'s vehicle repeatedly said, "Police! Don't move! Stop the vehicle! Get out of the vehicle!" § 87(2)(b) "looked possessed" and ignored the officer's commands.

§ 87(2)(b) drove forwards and then reversed at least once more. After § 87(2)(b) reversed, PO Hasper pointed his firearm at the vehicle and once more said, "Police! Don't move! Get out of the car!" § 87(2)(b) did not do so, and put his vehicle back into drive, moving forward by a couple of feet. Because § 87(2)(b) had not complied with the officers' directives by continuing to move his vehicle, and because there were officers in close proximity to § 87(2)(b)'s vehicle, and because there were numerous civilians in the area whose safety PO Hasper believed would be jeopardized if § 87(2)(b) was not forced to stop, PO Hasper then discharged his firearm once, which entered through the open passenger side window and struck § 87(2)(b) on his right torso underneath his armpit. § 87(2)(b)'s vehicle stopped after PO Hasper shot him, though PO Hasper did not know what caused it to stop. PO Hasper estimated that about a minute to a minute and a half elapsed between when he exited PO Dantuono's personal vehicle and when he shot § 87(2)(b).

PO Hasper's account is generally corroborated by the Firearm Discharge/Assault Report (BR 18), Ballistics Report (BR 19), and the UF-49 prepared as a result of this incident (BR 21).

In his GO-15 statement (BR 23), which was also summarized in the UF-49 (BR 21), and in his CCRB statement (BR 15) Det. Espinosa said that when he first saw § 87(2)(b)'s SUV, he noticed that it matched the description of a SUV that had been seen fleeing the scenes of multiple violent crimes in the weeks preceding this incident. This observation, in conjunction with the manner in which § 87(2)(b) drove, led Det. Espinosa to suspect that the vehicle may have been fleeing the scene of a violent crime. Det. Espinosa acknowledged that as he ran up to § 87(2)(b)'s vehicle, he struck one of its rear windows with his asp, damage to which was documented by the Crime Scene Unit (BR 22), explaining that he did so in an attempt to see into the vehicle as its windows were heavily tinted § 87(2)(b) did not himself allege this). Det. Espinosa said that when he was level with the rear passenger door of § 87(2)(b)'s vehicle, he heard what could possibly have been a gunshot coming from his right, or closer to the front passenger door, though he did not see the officer who discharged his firearm.

In his GO-15 statement (BR 24), which was also summarized in the UF-49 (BR 21), and in his CCRB statement (BR 25) Det. Filoramo said that as he was approaching the rear driver side of the vehicle he heard a pop and breaking glass, but did not initially know that this was a gunshot. Once § 87(2)(b)'s vehicle came to a stop, PO Filoramo entered through the front driver's side door to remove § 87(2)(b).

In his GO-15 statement (BR 26), which was also summarized in the UF-49 (BR 21), PO Dantuono said that he approached the passenger side of § 87(2)(b)'s vehicle with his gun drawn and pointed at § 87(2)(b). PO Dantuono moved alongside § 87(2)(b)'s SUV, yelling, "Police! Stop!" before § 87(2)(b) rammed into the vehicle in front of him. PO Dantuono did not know where PO Hasper was until he heard a shot coming from his right side. § 87(2)(b)'s vehicle came to a stop after PO Hasper discharged his firearm.

In his GO-15 statement (BR 27), which was also summarized in the UF-49 (BR 21) PO Ramos said that after he and PO Gergis pulled in behind § 87(2)(b) and began to exit their vehicle, § 87(2)(b) reversed into them, injuring both PO Ramos and PO Gergis. PO Ramos approached the rear driver side of the vehicle and entered through the rear driver side door, at which point he made physical contact with the driver, who was shifting the vehicle back and forth from drive to reverse. At some point PO Ramos heard a loud sound, but he did not at that time realize it was a gunshot.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Officers must give due respect to private property but may damage property if doing so is reasonably necessary to complete their duties. Onderdonk v. New York, 170 Misc. 2d 155 (Court of Claims, 1996) (BR 50) A police officer acting on reasonable suspicion of criminality and with an articulable basis to fear for his safety may intrude upon the personal effects of the suspect to the extent that it is necessary to protect himself from harm while he conducts the inquiry. NYPD v. Vanweddinger OATH Index No. 2053/00 (2000) (BR 41)

Officers are granted wide latitude to draw and display their weapons when they believe that their safety is in danger. PD v. Gliner, OATH Index 955/00 (2000) (BR 51)

Officers may use their firearms only as a last resort and only to protect human life. Officers are prohibited from discharging their firearms at a moving vehicle unless deadly physical force is being used against them or another person present, by means other than a moving vehicle. Patrol Guide Procedure 203-12 (BR 28)

§ 87(2)(g)

§ 87(2)(g)

As per PD v. Gliner, officers have broad discretion in drawing and pointing their firearms, so long as they reasonably fear that their safety is in danger. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) as per the Patrol Guide, officers are prohibited from discharging their firearms at a moving vehicle unless deadly physical force is being used against them or another by some means aside from the vehicle itself.

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

Allegation D – Force: An officer struck § 87(2)(b) with a blunt instrument.

Allegation E – Force: Det. Jason Filoramo used physical force against § 87(2)(b)

Allegation F – Force: Officers used physical force against § 87(2)(b)

§ 87(2)(b) (BR 14) said that he was in severe pain after being shot, and that his recollection of what occurred thereafter was consequently hazy. § 87(2)(b) felt that he was removed from the vehicle by multiple officers, though he could not tell how many, and could not describe them. As § 87(2)(b) was removed from the vehicle, he felt a blow from a hard object to the top of his head, causing a laceration there. § 87(2)(b) believed that an officer pistol-whipped him. § 87(2)(b) did not see the officer who allegedly struck him, and did not see the instrument with which he was allegedly struck. § 87(2)(b) assumed that he had been pistol-whipped only because he had just been shot. § 87(2)(b) lost consciousness thereafter, but believed that officers beat him. § 87(2)(b) based this assumption upon a bruise he later observed to his left forearm. § 87(2)(b)'s wife took pictures of the laceration to the top of § 87(2)(b)'s head and the bruise to his left forearm at § 87(2)(b) (BR 48).

§ 87(2)(a) PHL § 18(6)

§ 87(2)(b) The injury to § 87(2)(b)'s head is not depicted in his arrest photograph (BR 49), though it is unclear when his arrest photograph was actually taken and the wound may have had sufficient time to heal. § 87(2)(b) made no mention of these injuries in his Notice of Claim (BR 07).

Video footage begins after § 87(2)(b) has been removed from his vehicle and depicts no misconduct (BR 03 and 04). It shows two uniformed police officers, PO Patrick Gourlay of the 69th Precinct, and another, unidentified officer seating § 87(2)(b) on the ground and standing above him while they await an ambulance. Neither officer appears to be carrying any blunt instruments. No injuries are visible to § 87(2)(b)'s head or arm, but this may be due to angle of the video footage. Please see the above video clip labeled 2015-10-29-08-59-48.mp4.

§ 87(2)(b) (BR 11, 13) said in her CCRB telephone statement and her statement to the 69th Precinct Detective Squad that she did not see how § 87(2)(b) was removed from the vehicle.

The DD5s describing the statements § 87(2)(b) and § 87(2)(b) gave to the 69th Precinct Detective Squad (BR 11) note that both § 87(2)(b) and § 87(2)(b) saw officers remove § 87(2)(b) from the vehicle. § 87(2)(b) specified that once § 87(2)(b) was removed from the vehicle, officers sat him on the ground, where § 87(2)(b) saw him crying and bleeding from his shoulder. As discussed above, the investigation was unable to establish contact with § 87(2)(b) or § 87(2)(b).

The other witnesses who provided statements to the 69th Precinct Detective Squad indicated that they did not see how § 87(2)(b) was removed from the vehicle.

After § 87(2)(b) was shot, Det. Espinosa (BR 15, 21, and 23) attempted to remove § 87(2)(b) through the open passenger side of the vehicle. § 87(2)(b) was limp, and slumped towards the passenger side over the center console. Det. Espinosa managed to place a handcuff around one of § 87(2)(b)'s wrists. The officers on the driver side, including Det. Filoramo and a few other uniformed police officers, pulled § 87(2)(b) from the vehicle. Det. Espinosa ran to the driver side, by which point he observed § 87(2)(b) handcuffed and seated on the ground. Det. Espinosa acknowledged that he drew his asp during this incident and did not holster it again until § 87(2)(b) was fully handcuffed. Det. Espinosa never struck § 87(2)(b) on the head with an asp or other blunt instrument, or saw any officer do so.

Det. Filoramo (BR 21, 24, and 25) corroborated Det. Espinosa's account. Det. Filoramo added that after Det. Espinosa was able to place one of § 87(2)(b)'s hands into cuffs, § 87(2)(b) pulled his arm away from Det. Espinosa. Det. Filoramo carried no blunt instruments with him during this incident, and never struck § 87(2)(b) with any or saw any officer do so. Det. Filoramo and the other officers with him attempted to pull § 87(2)(b) by pulling at his left side. Det. Filoramo did not remember how § 87(2)(b)'s seatbelt was removed. In the course of pulling § 87(2)(b) who was resisting by holding the center console, from the vehicle, Det. Filoramo sustained an injury § 87(2)(b) which is documented in a LOD and AIDED report (BR 40) and in a picture taken by the Crime Scene Unit (BR 41).

PO Hasper (BR 16) did not participate in removing § 87(2)(b) from the vehicle, and he never struck, or saw any officer strike, § 87(2)(b) with a blunt instrument.

§ 87(2)(g) . § 87(2)(b) acknowledged that he had smoked marijuana and consumed alcohol prior to this incident. This is confirmed by evidence recovered from his vehicle, which included multiple liquor bottles (BR 34 to 37), and further confirmed by his medical records, which note that his urine drug screen upon admission was positive for opiates, cannabinoids, and benzodiazepines, in addition to an elevated alcohol level of 190 mg/DI (BR 17). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED] [REDACTED] [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]. After his arrest, § 87(2)(b) [REDACTED] provided a false name – § 87(2)(b) [REDACTED], which is his brother's name – to the police and to medical staff at § 87(2)(b) [REDACTED] (BR 17); § 87(2)(b) [REDACTED] later had to be interviewed by the 69th Precinct Detective Squad to clarify this matter (BR 11).

Officers must use the minimum physical force necessary to effect an arrest. P.G. 203-11 (BR 52)

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]

Squad:

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date

Attorney: _____
Title/Signature Print Date